

Art. 97(3) EPC is essentially identical to Art. 97(4), first sentence, EPC 1973. The provisions concerning the minimum period that must lapse before the grant can take effect have been deleted from the Article. With the other grant formalities being transferred to the Implementing Regulations (see R. 71 EPC), this matter too was more appropriately regulated at a lower legislative level. Consequently, Art. 97(6) EPC 1973 was deleted as unnecessary.

Under the EPC 2000, Art. 98 EPC stipulates that the European Patent Office shall publish the specification of the European patent as soon as possible after the mention of the grant of the European patent has been published in the European Patent Bulletin. The contents of the specification are transferred to the Implementing Regulations (see R. 73(1) EPC). Art. 98 EPC now contains the words "as soon as possible" in order to indicate that it is not always technically possible to publish the specification on the same day as the mention of the grant.

In T. 84/16 the board referred to T. 1644/10 and held that no legal effects were provided by the EPC with respect to the patent specification. The board endorsed the finding in Legal Advice No. 17/90 (OJ 1990, 260) that "the text of the patent specification (...) has no binding character. Its function is confined to facilitating public access to the content of the granted patent, particularly the nature and scope of the industrial property right".

In J. 7/96 (OJ 1999, 443) the Legal Board did not share the view of the department of first instance and the applicant that the proceedings for grant were concluded on the date the examining division reaches its decision to grant a European patent under Art. 97(2) EPC 1973. The Legal Board noted that it was true that this date represented the date on which the process of reaching a decision on the application within the examining division was concluded; both the EPO and the applicant were bound by the decision as far as the text of the patent to be granted, the claims, description and drawings were concerned, and the subject-matter of the text of the patent became *res judicata* at that date. Thereafter, the EPO could no longer amend its decision and had to disregard any fresh matter the parties might submit (see G. 12/91, OJ 1994, 285). Only linguistic errors, errors of transcription and obvious mistakes could be corrected later under R. 89 EPC 1973. The date on which the decision to grant the European patent was reached was thus clearly decisive as regards the EPO and the applicant. The Legal Board noted that under Art. 97(4) EPC 1973, the decision to grant a European patent referred to in Art. 97(2) EPC 1973 did not take effect until the date on which the European Patent Bulletin mentions the grant. It was from this date of mention that, in accordance with Art. 64(1) EPC 1973, a European patent conferred on its proprietor the same rights in respect of each contracting state in respect of which it is granted as would be conferred by a national patent granted in that State. The mention also marked the time when the responsibility of the EPO came to an end and the national patent systems took over, the granted patent becoming a bundle of national patents. It also marked the start of the period during which a notice of opposition may be filed (Art. 99(1) EPC 1973). Thus, the date of publication of the mention of the grant of the patent was the date on which the grant of the patent took legal effect with respect to third parties, and on which the extent of protection conferred on the applicant was determined once and for all by means of the accompanying publication of the specification of the patent pursuant to Art. 98 EPC 1973. During the

period between the decision to grant the patent (Art. 97(2) EPC 1973) and the publication of the mention of the grant (Art. 97(4) EPC 1973), the application was deemed to be still pending before the EPO. As the department of first instance itself admitted in its decision, and as was also not disputed by the applicant, according to established EPO practice it was still possible during this interim period to take some limited action in respect of the application, which may, for example, be withdrawn or transferred. Applicants may even withdraw individual designations if they so wish. For its part, the EPO continued to have certain rights or obligations concerning the patent during this period; for example, the annual fees fell due and transfers of rights in the patent must be registered by the EPO.

In J 23/03 the appellant requested that the designation country GR incorrectly marked with a cross be corrected to GB. After a considerable exchange of correspondence, the examining division refused the request for correction on the ground that, from the date of publication of the patent, public interest in the reliability of the published information overrode the patent proprietor's interest in a correction, especially as he had had several opportunities to check the designation information in the course of the proceedings, namely after the notification of forms 2004 and 2005. The Legal Board stated that R. 88 EPC 1973 did not contain an explicit reference to a time limit and that a request for correction could therefore be submitted at any stage of the patent grant procedure (see also J 6/02). This also applied to the correction of incorrect designation information in the application documents as requested by the appellant. The Legal Board nevertheless found that the appellant's request for correction of the designation information in the application documents had been submitted to the EPO only on 29 April 2002. Mention of the grant of his patent had appeared in the Patent Bulletin over a month before that date. Under Art. 97(4) EPC 1973, mention of the patent grant led to the grant of the patent taking effect and to the patent grant proceedings being concluded. At the time that the appellant submitted his request for correction, therefore, the proceedings were no longer pending (see J 7/96, OJ 1999, 433; J 42/92). The Legal Board held that the pendency of patent grant proceedings was, however, a requirement for the submission of an admissible request for correction because after that date the bundle of European patents granted under a single system divides into national patents which are then no longer administered by the EPO but by the appropriate national offices.

3.11. Errors in the Patent Bulletin

In decision J 14/87 (OJ 1988, 295) the question arose to what extent a deficiency in the publication of the mention of grant of a European patent, i.e. the omission of important particulars relating to the grant, might render the patent ineffective. The Legal Board held that in principle deficiencies in the publication of the mention of grant in the European Patent Bulletin did not necessarily render the decision to grant within the meaning of Art. 97(4) EPC 1973 ineffective. Nevertheless, this matter could be decided only in the light of the case in question and the fact that the purpose of the publication was to draw the attention of interested parties to the grant of the patent, and also that any decision to file an opposition had, under normal circumstances, to be based on a careful examination of the extent of the protection conferred by the patent and not solely on the particulars given in the European Patent Bulletin. Such an examination could be carried out

satisfactorily only if the patent specification was published at the same time as the mention of grant of the patent.

4. Additional searches during examination

An additional search will sometimes be required either at the first stage of amendment or subsequently. This may arise for a number of reasons (for more details, see Guidelines C-IV, 7.2 – March 2022 version).

4.1. Rule 63 EPC governing incomplete search

4.1.1 Introduction

R. 63(1) and (2) EPC (incomplete search) (former R. 63 EPC; R. 45 EPC 1973) were amended by decision of the Administrative Council CA/D 3/09 of 25 March 2009 (OJ 2009, 299), which entered into force on 1 April 2010.

Under R. 63(1) EPC if the EPO considers that the European patent application fails to such an extent to comply with the EPC that it is impossible to carry out a meaningful search regarding the state of the art on the basis of all or some of the subject-matter claimed, it shall invite the applicant to file, within a period of two months, a statement indicating the subject-matter to be searched. See T. 1653/12.

According to R. 63(2) EPC if the statement under paragraph 1 is not filed in due time, or if it is not sufficient to overcome the deficiency noted under paragraph 1, the EPO shall either issue a reasoned declaration stating that the European patent application fails to such an extent to comply with the EPC that it is impossible to carry out a meaningful search regarding the state of the art on the basis of all or some of the subject-matter claimed or, as far as is practicable, draw up a partial search report. The reasoned declaration or the partial search report shall be considered, for the purposes of subsequent proceedings, as the European search report. See T. 1653/12.

In the ideal case, the applicant's statement removes completely the deficiencies under Art. 84 EPC and a complete search report can be drawn up. Alternatively, the partial search report will be drawn up in the light of the applicant's submissions, so that it will be up to the applicant to delimit the subject-matter to be searched.

R. 63 EPC enables the applicant to submit statements more clearly defining the subject-matter to be searched in cases where a normal search cannot be carried out. However, because the search report should, as a rule, be drawn up in time for publication together with the application, further processing in respect of the period referred to in proposed R. 63(1) EPC will be excluded. This implies that re-establishment of rights will be possible. See the notice from the EPO dated 15 October 2009 (OJ 2009, 533).

In T. 1242/04 (OJ 2007, 421) the board held that R. 45 EPC 1973 applied to cases which did not comply with the provisions of the EPC to such an extent that it was not "possible" to carry out a "meaningful search" into the state of the art on the basis of all or some of

the claims. Thus a R. 45 EPC 1973 declaration was allowed only where a search was not possible. In other cases the search division draws up a partial search report, "so far as is practicable". The board explained that R. 45 EPC 1973 related only to the practicability of a search and not to the potential relevance of its results in subsequent substantive examination.

In T 1653/12 the board noted that T 1242/04 dealt with former R. 45 EPC 1973, which had a different wording from current R. 63 EPC. Since T 1242/04 dealt with a case, in which no invitation of the search division under R. 63(1) EPC and no response thereto was present, the reasons of that decision were not directly applicable to the case in hand. However, both decisions stated that fundamental clarity problems might make it impossible to carry out a meaningful search. The discrepancy between the claims and description was a fundamental clarity problem.

4.1.2 Additional search necessary: limited discretion of the examining division

In T 1515/07 the board stated that in normal circumstances an additional search had to be carried out if a search under R. 63 EPC was missing. The case law allowed discretion in this respect, but this discretion was limited to the special cases of notoriously known features or those explicitly accepted by the applicant as known. In all other cases, an additional search had to be performed. In particular, as long as no search had been performed an examining division should normally not refuse an application for lack of inventive step if the invention as claimed contained at least one technical feature which was not notorious. The examining division considered that it was not "necessary" to carry out a search because a decision could be reached anyway. The examining division was held to have committed a substantial procedural violation within the meaning of R. 103(1)(a) EPC by not performing an additional search that was manifestly necessary. It was therefore equitable to reimburse the appeal fee.

In T 1242/04 (OJ 2007, 421) it was held that only when a search was not at all possible could it be denied under R. 45 EPC 1973. Whether or not the search division believed that the result of a search would be of use for the substantive examination was irrelevant. If nevertheless the situation occurred that no search had been performed although it could (and should) have been, an examining division was not obliged to perform an additional search for purely formal reasons if it considered a refusal of the application to be justified on the basis of prior art which was either so well known that it clearly did not require written proof or was accepted by the applicant as known. In all other cases an additional search should be performed.

In T 690/06 regarding the procedure before the examining division the board was of the opinion that the examining division should have performed an additional search since the database partitioning and access control features were neither non-technical nor notorious. Following the principles set out in T 1242/04, the board considered that, as long as no search has been performed, an examining division should normally not refuse an application for lack of inventive step if the invention as claimed contained at least one technical feature which was not notorious. The term "notorious" had to be interpreted narrowly. See also T 918/14.

In T.1411/08 the board understood "notorious" as implying that technical detail was not significant. The board stated that where a search division had decided that no search was to be performed, it was not always necessary for the examining division to carry out an "additional search" before raising an inventive-step objection. According to the established case law of the boards of appeal it was possible to raise an objection of lack of inventive step without documented prior art. That should be allowable where the objection was based on "notorious knowledge" or indisputably forms part of the common general knowledge (T.1242/04, OJ 2007, 421). Such cases, however, were exceptional, and a search was otherwise essential. In the case in hand, the examining division could and should have ensured that a search was performed before refusing the application for lack of inventive step. The board considered that the failure to carry out an "additional search" constituted a substantial procedural violation.

In T.1924/07 the board held that the applicant's acknowledgement in the original application that certain prior art was known was, in general, not a sufficient reason for not carrying out an additional search. The only condition under which an additional search can be dispensed with was where all the technical features of a claim correspond to "notorious" prior art.

In T.2299/10 the decision under appeal was, inter alia, based on the objection that the subject-matter of claim 1 lacked an inventive step. The EPO acting as International Searching Authority issued a declaration of non-establishment of the international search report under Art.17(2)(a) PCT. No supplementary European search report was established either. The examining division examined the application despite the fact that no search had been carried out. However, this was only possible in exceptional cases and, according to the case law of the boards of appeal, an additional search for pertinent prior art may be dispensed with only if the technical features of the claims were considered to be "notorious", i.e. generic and so well known that they could not reasonably be refuted (see T.1411/08). In the board's judgment, the technical features went beyond the mere common general knowledge and could not be considered "notorious". An applicant's acknowledgement in the original application that certain prior art was known is in general not a sufficient reason for not carrying out an additional search since such statements may be – and indeed frequently are – withdrawn or qualified. Moreover, this could only apply in cases where all the technical features in the claim would be acknowledged as known (see T.1924/07). In the case in hand, however, the appellant did not acknowledge the relevant features of claim 1 mentioned as being known. Thus, claim 1 could not be definitively assessed with respect to novelty and inventive step without knowledge of the relevant documented prior art. Thus the request required a search for relevant prior art. Hence the matter had to be remitted for an additional search and further examination.

In T.2249/13 the appellant doubted the legitimacy of the notice from the European Patent Office dated 1 October 2007 concerning business methods (OJ 2007, 592), which announced a no-search policy for claims pertaining to business methods. It claimed such discrimination was not justified. It considered that the EPO had enriched itself unfairly by receiving the search fee without performing a search. Furthermore, the no-search declaration of the search division could not be deemed to be a European search report under R.63(2) EPC as the search division had ignored R.63(1) EPC by failing to invite